

TENTATIVE RULING(S) FOR JULY 17, 2026

Department S37 – Judge Winston Keh

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You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2522097

Cole vs Cole

TENTATIVE RULING(S):

For context, this is a quiet title litigation. On July 30, 2025, Plaintiff Pamela J. Cole filed her Complaint against Defendant Kevin M. Cole, alleging one cause of action for quiet title.

The Complaint alleges that Pamela, individually and later as the trustee of the Cole Family Trust, owns the property at 945 West J St., Ontario (¶¶4, 9-12). On May 11, 2021, Pamela executed a Durable Power of Attorney (DPA) for finances in favor of her son, Kevin. Then on September 20, 2023, she revoked Kevin's DPA, and issued a DPA in favor of her daughter, Candice M. McCormick (¶¶6-7). Kevin claims an interest in the Subject Property (¶¶13-14).

On May 8, 2026, Defendant Kevin moved to dismiss the Complaint. As no opposition was filed, the Court on May 28, 2026, granted the motion. Thereafter, Plaintiff moved ex parte to set her motion to set aside the dismissal on shortened notice. On June 18, 2026, the Court granted Plaintiff's Ex Parte to consider Plaintiff's Motion to Set Aside on shortened notice, and, if granted, to reconsider the Dismiss Motion. On that same date, Plaintiff Pamela filed her Motion to Set Aside and her Opposition to the Dismiss Motion. No opposition is on file to the Set Aside Motion.

ANALYSIS

Set Aside. Although no opposition was filed to the Set Aside Motion, the Court GRANTS the motion after reviewing the motion, and based on either extrinsic mistake or attorney-fault (Code Civ. Proc., §473, subd. (b)).

Dismissal. Defendant Kevin moved to dismiss the Complaint because during the meet and confer process required before he could Demurrer, the parties agreed that Plaintiff would amend. On December 24, 2025, a Stipulated Order for Leave to File a First Amended Complaint (FAC) was entered. It provided that parties agreed that Plaintiff was permitted to file a FAC. After the stipulation, the parties discussed settlement, but when no settlement was reached, Plaintiff's Counsel was of the opinion that quiet title was the right avenue and there was no need to amend the Complaint. He informed Defense Counsel that an Answer to the Complaint was needed. (Berkley Decl. at ¶¶6, 8, 17-20, 22, 25-26.) Instead of responding to the Complaint, Defendant filed his Dismiss Motion.

The authority for the dismissal cited in the Defendant's Motion is Code of Civil Procedure section 581, subdivisions (f) and (m). Subdivision (f) permits a Court to dismiss an action if a Demurrer or Strike Motion are sustained without leave to amend, or if no amended complaint is filed after a sustained with leave to amend Demurrer or Strike Motion. Yet Plaintiff's permission for leave to amend was not based on a sustained Demurrer or Strike Motion. Thus, subdivision (f) offers no support for dismissal.

Subdivision (m) provides that nothing in section 581 shall be deemed an "exclusive enumeration of the court's power to dismiss an action or dismiss a complaint as to a defendant." Yet this does

not support dismissal, but only provides that the Court's power to dismiss is not limited to the standards listed in section 581.

Defendant Kevin asked that the Complaint be dismissed because it was withdrawn when Plaintiff agreed to file a FAC. However, after scrutinizing the Stipulation more closely, Defendant's position is not accurate. The Stipulation provided that Plaintiff was *permitted* to file an FAC. Nothing in the Stipulation stated that Plaintiff had withdrawn her Complaint. Nothing in the Stipulation stated that Plaintiff was mandated to file an FAC. Rather by the language in the Stipulation, Plaintiff was free to decline to file an FAC, and then place the obligation on Defendant Kevin to respond via Demurrer, Strike, or Answer.

Thus, Defendant Kevin offered no reasonable ground to dismiss this action. Therefore, Defendant's Motion to Dismiss is DENIED.

RULING

For all the reasons stated above, the Court:

- (1) GRANTS Plaintiff Pamela Cole's Motion to Set Aside the Dismissal;
- (2) DENIES Defendant Kevin Cole's Motion to Dismiss; and
- (3) ORDERS Defendant Kevin Cole to file a responsive pleading to the Complaint within the next 15 days; and if Defendant contemplates filing a Demurrer and/or Strike Motion, the Court reminds counsel to conduct a code-compliant meet and confer before filing their motions. A declaration on those efforts must be submitted with any filed Demurrer and/or Strike Motion.

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CIVSB2112806

Lopez vs FCA

TENTATIVE RULING(S):

Before this Court is Plaintiff's motion for prevailing party's attorney's fees pursuant to Song Beverly.

For context, this matter was removed to Federal Court on December 2, 2019. On February 3, 2020, Plaintiff filed the operative first amended complaint ("FAC") eliminating the Magnuson-Moss cause of action, and therefore renumbering the fraudulent inducement-concealment claim as the sixth cause of action. The matter was remanded to Orange County on February 11, 2020. A motion to compel arbitration was filed on March 10, 2020 by FCA and then withdrawn on June 4, 2020. A protective order was entered into on June 8, 2020. Plaintiff moved to compel further responses to discovery on June 16, 2020 and Defendants moved to transfer venue on June 23,